

Before the
OFFICE OF SCIENCE AND TECHNOLOGY POLICY
Alexandria, VA 22314

In the Matter of	)	
	)	
The Development of an Artificial Intelligence	)	Docket No. 2025-02305
(AI) Action Plan	)	

COMMENTS OF TWILIO

I. INTRODUCTION

Twilio appreciates the opportunity to respond to the Request for Information (RFI) published by the National Science Foundation on behalf of the White House Office of Science and Technology Policy (OSTP) on the Development of an Artificial Intelligence (AI) Action Plan called for in Presidential Executive Order No. 14179, *Removing Barriers to American Leadership in Artificial Intelligence*, issued on January 23, 2025.¹

Twilio is a global cloud software and communications service provider with over 300,000 customers worldwide. As a Business-to-Business (B2B) company, Twilio empowers businesses, governments, and nonprofits of all sizes, across the United States, to enhance their engagement with their customers and constituents. Twilio’s communication solutions, including voice, text messaging, email, and chat, help businesses to create efficiencies, expand their market share, and provide customers with a targeted, positive experience. Twilio uses AI in a variety of products and services, such as Flex Agent CoPilot with Unified Profiles, to enable businesses to

¹ Request for Information on the Development of an Artificial Intelligence (AI) Action Plan, 90 Fed. Reg. 9088 (Feb. 6, 2025), <https://www.federalregister.gov/documents/2025/02/06/2025-02305/request-for-information-on-the-development-of-an-artificial-intelligence-ai-action-plan> (“RFI”). This document is approved for public dissemination. The document contains no business-proprietary or confidential information. Document contents may be reused by the government in developing the AI Action Plan and associated documents without attribution.

conduct their interactions with customers more efficiently.² We also offer AI products to help customers detect and block suspicious messages through products such as Verify Fraud Guard.³

II. TWILIO AND RESPONSIBLE AI

Twilio knows that AI has the potential to improve the lives of consumers and to enhance business productivity. However, as the technology develops it is important to evaluate it carefully. Twilio supports the development and use of responsible AI. Accordingly, we have developed CustomerAI Trust Principles and are operationalizing those principles into our products to enable the responsible use of AI by our company and customers.⁴ We also created an AI Privacy Ladder to categorize models by the type of data used,⁵ along with AI Nutrition Facts Labels to help customers and consumers know how AI is being used in our products and empower customers to make informed decisions about adoption.⁶

III. POLICY PROPOSALS FOR THE AI ACTION PLAN

In developing the AI Action Plan, Twilio encourages the Administration to approach AI policy in a way that promotes innovation and enables American companies to compete in a rapidly developing global marketplace. Twilio shares the Administration’s commitment to enhancing America’s leadership in AI “to promote human flourishing, economic competitiveness, and national security” and we appreciate the RFI’s recognition that ensuring

² *Twilio Launches Unified Profiles and Agent Copilot, Combining Customer Data and AI to Boost Productivity and Engagement*, Twilio (Mar. 27, 2024), <https://www.twilio.com/en-us/press/releases/unified-profiles-agent-copilot>.

³ *Verify Fraud Guard*, Twilio (last visited Mar. 14, 2025), <https://www.twilio.com/docs/verify/preventing-toll-fraud/sms-fraud-guard>.

⁴ *Twilio Alpha*, Twilio (last visited Mar. 14, 2025), <https://twilioalpha.com/>. See also *Twilio CustomerAI Fuels Next Generation Customer Relationships and Competitive Advantage for Businesses Worldwide*, Twilio (Aug. 23, 2023), <https://www.twilio.com/en-us/press/releases/twilio-customerai-fuels-next-generation-customer-relationships-a>.

⁵ See Keith Kirkpatrick, *Twilio Debuts CustomerAI Privacy Ladder and AI Nutrition Facts Labels*, Futurum (Aug. 25, 2023), <https://futurumgroup.com/insights/twilio-debuts-customerai-privacy-ladder-and-ai-nutrition-facts-labels/>.

⁶ *AI Nutrition Facts*, Twilio (last visited Mar. 14, 2025), <https://twilioalpha.com/nutrition-facts>.

“unnecessarily burdensome requirements do not hamper private sector AI innovation” is key to achieving this goal. With this in mind, Twilio offers the following policy perspectives to support the AI Action Plan in promoting growth for the thousands of U.S. companies that are harnessing the power of AI for the benefit of businesses and consumers.

A. AI Policy Should be Risk-Based, Flexible, and Allow for Innovation

Twilio encourages policies and standards that foster industry and government collaboration on responsible AI usage as well as AI innovation and competition. As a prime example, Twilio supports the goals of the National Institute for Standards and Technology (NIST) AI Risk Management Framework (AI RMF) and views the AI RMF as a thoughtful approach to AI governance grounded in risk-based, voluntary industry participation. As a sensible first step in approaching AI policymaking, Congress and the Administration should examine existing laws and authorities that already may be applicable to AI, such as consumer protection and product liability laws, to identify any gaps that need to be addressed. AI risk should be identified and mitigated appropriately while preserving benefits to businesses and consumers, to include improving human and business efficiencies and choice while ferreting out fraud and other malicious activities. Any potential AI regulation should focus on clearly identified high-risk use cases, such as hiring decisions or developing lifesaving drugs for patients, and should not be overly inclusive or focused on whole industries or technologies. Companies need flexibility to continue to innovate with new AI products and services. Though Twilio has used AI for several years to help combat fraud on its networks, Twilio’s new applications for AI are already allowing businesses to be more creative, efficient, and customer-oriented, and to direct resources more appropriately to targeted customer needs.

Sensible global harmonization of AI regulations and standards is key to fostering innovation and a robust global marketplace for AI products and services. Twilio encourages

efforts through standards bodies such as ISO/IEC to develop industry standards and supports the work of the Organisation for Economic Co-operation and Development (OECD) to define international AI principles.

B. U.S. AI Policy Should Reflect the Varied Nature of the AI Ecosystem, Including the Important Role of AI Integrators

Companies like Twilio often occupy the role of “AI integrator,” where we incorporate third party AI technology into our products and services for deployment by our business customers. Recently, legislative discussions have focused on whether an entity is a “developer” or a “deployer” of AI. However, AI integrators like Twilio do not fit neatly into either category; as we often do not develop our own generative AI models, nor have a direct relationship with end-user consumers. Before defining and assigning any new legal obligations, any AI regulatory efforts must clearly and appropriately define the roles and obligations for the various actors in the AI value chain. AI integrators that fine tune or modify LLMs developed by others should be subject to risk requirements and obligations only when the modification introduces greater risk into the model, and only where the integrator exercises substantial control. Integrators should not be forced to assume responsibility for the entire model.

Information sharing requirements related to model development may also be appropriate to ensure the AI ecosystem can best function responsibly and accurately for businesses and consumers. AI model developers should be subject to clear transparency requirements so that integrators like Twilio have access to key information, including information that is not publicly available. This will permit business customers who deploy AI to end-user consumers to comply with applicable laws. Additionally, while Twilio supports concepts such as deployment monitoring of models that reside at the highest risk tier, any requirement to share data with competitors with no guardrails in place to protect privacy, security, and innovation threatens the

cultivation of a healthy, fair, and competitive marketplace. It will also create an environment where it is difficult to encourage the development of open source models and will create additional challenges for B2B companies and business models that rely on and manage customer data.

Any regulatory environment designed to foster U.S. AI leadership and promote competition must avoid extensive or cumbersome reporting requirements and must not impose regulatory requirements on an overly broad set of use cases or unduly burden small- and medium-sized providers. Regulatory measures should be proportionate, reasonable, and tailored to avoid undue impact on small- and medium-sized providers.

Finally, any new legislation or regulation should include incentives for downstream providers to benefit from AI. Not all providers are similarly situated and it's essential that the United States continue to build a regulatory environment that fosters opportunity in the marketplace for smaller companies. The work being done under initiatives like the National Artificial Intelligence Research Resource (NAIRR) should also form the basis of new opportunities for the next generation of companies. We encourage policymakers to consider new opportunities in the form of grants or other funding resources to incentivize the next phase of AI innovation.

C. The United States Should Continue to Create an Innovative Environment that Allows for Greater Adoption of Open Source AI Models

A healthy and competitive AI ecosystem that drives U.S. leadership requires robust use of open source models. Further, AI policy should not favor any particular technology model based on unsubstantiated security or privacy concerns. Any such bias will inhibit the ability of American companies to compete and drive customers to other markets. Safe and reliable open source AI models can be a benefit to both business and consumers while minimizing risks to

privacy and security. Any regulatory requirements must be reasonable, proportionate, and narrowly tailored to the specific risk they are designed to mitigate.

D. If Retained, the U.S. AI Safety Institute Should be Expanded to Maximize its Effectiveness

Twilio supports the goals underlying the creation of the U.S. AI Safety Institute at NIST. For the Institute to stay relevant and be a clear benefit to business and consumers, however, the Administration should reopen the application process to admit additional participants beyond the initial 200 selected by the previous administration. More input is needed from a broader cross section of AI stakeholders, especially AI integrators, for the Institute to be effective in fostering responsible AI standards that can serve as a model for the global marketplace.

E. The AI Action Plan Should Prioritize Sensible Data Policies and Regulations

Sensible and proportionate data policies are key to fostering a competitive AI ecosystem. Overly burdensome or restrictive data requirements could put U.S. companies at a disadvantage in the products and services they are able to offer. Twilio notes that restricting the types of data that can be used, prohibiting how data is used, or failing to recognize reasonable legitimate use cases, such as product development, could greatly hamper AI innovation and the United States' ability to maintain the edge in AI development.

Finally, we urge the Administration to align AI policies with existing data frameworks and with like-minded partners to reduce compliance costs for small- and medium-sized providers. This also includes harmonization of laws and standards across the U.S. federal government and States. Twilio already implements the General Data Protection Regulation (GDPR) globally and we support the continuance of the US-EU Privacy Shield to protect American interests in the global cloud market. As the Administration develops the AI Action

Plan, it should prioritize sensible data policies as a critical component of effective AI development and deployment.

IV. CONCLUSION

Twilio appreciates the Administration's work to solidify effective U.S. AI policy that drives American leadership in AI to promote human flourishing, economic competitiveness, and national security. The recommendations above can help the AI Action Plan establish a strong foundation and we look forward to ongoing collaboration with the Administration in service of that goal.

Respectfully submitted,

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